

TENTATIVE RULINGS**DEPT W15****JUDGE RICHARD Y. LEE**

Date: September 24, 2026

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's [website](#) for rules and procedures for court reporters obtained by the Parties.

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5915. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Do not call the department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling. The Court interprets a party's failure to appear at the hearing as a waiver of oral argument.

Remote Appearances: Department W15 permits non-evidentiary proceedings, including law and motion, to be conducted remotely. *If you are appearing remotely:* (1) all counsel and self-represented parties appearing for such hearings **must**, prior to 1:30 p.m. on Thursday, check-in online via the Court's civil video appearance website ([link here](#)); and (2) participants will then be prompted to join the courtroom's Zoom hearing session.

Local Rule 375(c): Attorneys **shall** comply with Local Rule 375(c) which governs "Decorum for In-Person and Remote Court Appearances." ([Local Rule 375\(c\)](#)) Specifically, the video and audio must be turned on and functioning during the hearing; and attorneys are expected to wear appropriate business attire.

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101	Clicktide Digital Corporation vs. VPP Technologies, Inc., 25-01521849	Specially Appearing Defendant VPP Technologies, LLC ("VPP") moves to quash service of summons on the basis Clickside Digital Corporation ("Plaintiff") has not demonstrated this Court has personal jurisdiction over VPP. Pursuant to Code of Civil Procedure section 418.10, subdivision (a)(1), a Defendant may, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, serve and file a notice of motion to quash service of summons, on the

		ground of lack of jurisdiction. (Code Civ. Proc., § 418.10, subd. (a)(1).) “When a defendant moves to quash service of process on jurisdictional grounds, the plaintiff has the initial burden of demonstrating facts justifying the exercise of jurisdiction.” (<i>Vons Companies, Inc. v. Seabest Foods, Inc.</i> (1996) 14 Cal.4th 434, 449 (<i>Vons</i>).) “The plaintiff must provide specific evidentiary facts, through affidavits and other authenticated documents, sufficient to allow the court to independently conclude whether jurisdiction is appropriate.” (<i>Strasner v. Touchstone Wireless Repair and Logistics, LP</i> (2016) 5 Cal.App.5th 215, 222; <i>See also BBA Aviation PLC v. Superior Court</i> (2010) 190 Cal.App.4th 421, 428-429.) The Plaintiff must establish jurisdiction “by a preponderance of the evidence.” (<i>Shisler v. Sanfer Sports Cars, Inc.</i> (2006) 146 Cal.App.4th 1254, 1259.) With respect to general jurisdiction, “only a limited set of affiliations with a forum render a defendant amenable to all-purpose jurisdiction there.” (<i>Daimler AG v. Bauman</i> (2014) 571 U.S. 117, 137.) “For general jurisdiction, the ‘paradigm forum’ is an ‘individual’s domicile,’ or, for corporations, ‘an equivalent place, one in which the corporation is fairly regarded as at home.’” (<i>Bristol-Myers Squibb Co. v. Superior Court of California, San Francisco County</i> (2017) 137 S.Ct. 1773, 1776.) The “paradigm” bases for general jurisdiction for a corporation are the place of incorporation and the principal place of business. (<i>Daimler AG v. Bauman</i> (2014) 571 U.S. 117, 138.) Here, it is undisputed that VPP is an Illinois limited liability company, and Plaintiff does not otherwise contend that VPP is subject to general jurisdiction. (See Treacy Decl. ¶¶7-8; Lyons Decl. ¶ 1.) “If the nonresident defendant does not have substantial and systematic contacts in the forum sufficient to establish general jurisdiction he or she still may be subject to the specific jurisdiction of the forum, if the defendant has purposefully availed himself or herself of forum benefits...and the controversy is related to or arises out of a defendant’s contacts with the forum.” (<i>Vons Companies, Inc. v. Seabest Foods, Inc.</i> (1996) 14 Cal.4th 434, 446.) “The United States Supreme Court has described the forum contacts necessary to establish specific jurisdiction
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as involving variously a nonresident who has ‘purposefully directed’ his or her activities at forum residents...or who has ‘purposefully derived benefit’ from the forum activities...or ‘purposefully avail[ed himself or herself] of the privilege of conducting activities within the forum State, thus invoking the benefits and protections of its laws.’ (*Id.* at p. 446.)

Stated more simply, “[a] court may exercise specific jurisdiction over a nonresident defendant only if: (1) the defendant has purposefully availed himself or herself of forum benefits; (2) the controversy is related to or arises out of the defendant’s contacts with the forum; and (3) the assertion of personal jurisdiction would comport with fair play and substantial justice.” (*Elkman v. National States Ins. Co.* (2009) 173 Cal.App.4th 1305, 1314.)

As explained by the Court in *Elkman v. National States Ins. Co.* (2009) 173 Cal.App.4th 1305, “[t]he purposeful availment inquiry...focuses on the defendant’s intentionality. [Citation] This prong is only satisfied when the defendant purposefully and voluntarily directs his activities toward the forum so that he should expect, by virtue of the benefit he receives, to be subject to the court’s jurisdiction based on’ his contacts with the forum.” (*Id.* at p. 1317.) “[T]he ‘purposeful availment’ requirement ensures that a defendant will not be hauled into a jurisdiction solely as a result of ‘random,’ ‘fortuitous,’ or ‘attenuated’ contacts [citations], or of the ‘unilateral activity of another party or a third person.’” (*Ibid.*).

This action concerns a business dispute between the parties. The parties had a meeting at a conference in Las Vegas wherein they discussed working together. The agreement that was discussed in Las Vegas was ultimately sent to Plaintiff’s principal, Greg Graveline, via email, and he signed it in Orange County, California, which is where his business is located. (ROA 42, Graveline Decl. ¶¶1, 4.)

The Agreement provides that it will be governed and construed “in accordance with United States law, and otherwise, in accordance with Illinois law.” (ROA 22, Lyons Decl., Exh. 1, ¶ 12.)

The parties disagree as to who initiated the Las Vegas meeting. Plaintiff contends that one of the principals of VPP reached out to Graveline via LinkedIn to initiate the meeting, whereas VPP contends that Graveline responded to a general announcement on VPP's LinkedIn profile which indicated that VPP would be attending the conference. (ROA 42, Graveline Decl. ¶ 4; ROA 56, Lyons Decl. ¶ 8.) VPP contends that the meeting with Graveline was one of approximately 37 meetings that VPP scheduled during the conference. (ROA 56, Lyons Decl. ¶ 9.)

Irrespective of who initiated the Las Vegas meeting, it does not appear that Plaintiff being located in California had any role in causing VPP to enter the agreement with Plaintiff. As explained by one of VPP's principals, Michael Lyons:

"VPP enters into contracts with companies, and thereafter those companies enter into contracts to obtain traffic from other third-party sources. The physical location of VPP's direct contracting party therefore does not necessarily correspond to the location from which the traffic originates.

"Based upon VPP's traffic data, less than one percent (1%) of the traffic to VPP's websites originates from California. California was not a targeted or material market underlying VPP's relationship with Clicktide."

(ROA 56, Lyons Decl., ¶¶ 15-16.)

Plaintiff further urges that VPP also does business with Yahoo!, that Yahoo! monitored the activity and calculated the revenue attributable to Plaintiff's work, and that Yahoo! is registered to do business in California. This connection to California is far too attenuated to be considered purposeful availment.

Although Graveline executed the Agreement in Orange County California, it was emailed to him by VPP and could have been reviewed and executed anywhere. (ROA 42, Graveline Decl. ¶ 4; ROA 56, Lyons Decl. ¶¶ 10-11.)

Further, Plaintiff does not dispute that its website does not identify any address, state or geographic location for the company, and does not reference California in any

		manner. (ROA 56, Lyons Decl. ¶ 14.) VPP's principals have never visited Plaintiff's California office. (Id. ¶ 20.) VPP's dealings with Plaintiff did not require anyone from VPP to travel to California and California's location was immaterial to the performance of the parties' agreement. (Id. ¶ 21.) Accordingly, the motion is GRANTED. Plaintiff's objection to the Declaration of Nick Szabo on the grounds that it does not comply with CCP §2015.5, as it was executed outside of California and does not state that it was made under penalty of jury under the laws of the State of California is OVERRULED as the declaration has been amended to indicate compliance with section 2015.5. Plaintiff's request for judicial notice is DENIED as immaterial to the resolution of this motion. <i>Moving Party to give notice.</i>
102	Smartstop Storage Advisors, LLC vs. Hernandez, 25-01528578	Defendant Prime Group Holdings, LLC ("Prime") moves for an order requiring plaintiff SmartStop Storage Advisors, LLC ("SmartStop") to file an undertaking in the amount of \$500,000 pursuant to Code of Civil Procedure section 1030. Code of Civil Procedure section 1030 provides, in relevant part: "(a) When the plaintiff in an action or special proceeding resides out of the state, or is a foreign corporation, the defendant may at any time apply to the court by noticed motion for an order requiring the plaintiff to file an undertaking to secure an award of costs and attorney's fees which may be awarded in the action or special proceeding. For the purposes of this section, "attorney's fees" means reasonable attorney's fees a party may be authorized to recover by a statute apart from this section or by contract. "(b) The motion shall be made on the grounds that the plaintiff resides out of the state or is a foreign corporation and that there is a reasonable possibility that the moving defendant will obtain judgment in the action or special proceeding. The motion shall be accompanied by an affidavit in support of the grounds for the motion and by a

memorandum of points and authorities. The affidavit shall set forth the nature and amount of the costs and attorney's fees the defendant has incurred and expects to incur by the conclusion of the action or special proceeding."

A moving defendant is "not required to show that there [is] no possibility that [the plaintiff] could win at trial, but only that it was reasonably possible that [the defendant] would win." (*Baltayan v. Estate of Getemyan* (2001) 90 Cal.App.4th 1427, 1432.)

Defendant Rene Hernandez served as SmartStop's Director of Revenue from January 1, 2024 to November 22, 2025. He resigned from his position with SmartStop and is now employed by Prime. SmartStop alleges one cause of action for misappropriation of trade secrets against Prime based on allegations that Mr. Hernandez became aware of SmartStop's trade secrets by virtue of his employment and also copied SmartStop files, including sensitive trade secrets, and sent them to his personal email address before his departure. argues it has a reasonable possibility of prevailing because its evidence shows it has never received or solicited potential trade secret information from Mr. Hernandez.

In support of the instant Motion, Prime's Chief Operating Officer, Dimitrios Papiris, asserts that he interviewed Mr. Hernandez and at no point during the employment process did he or anyone else at Prime request that Mr. Hernandez provide any information or documents he had access to or possession of by virtue of his employment with SmartStop. He further asserts that Prime has at no point received any information or documents that Mr. Hernandez is alleged to have taken from SmartStop. Further, after this litigation commenced, Prime and Mr. Hernandez entered into a Confidentiality and Non-Use Agreement which provides that Mr. Hernandez has never directly or indirectly shared any SmartStop materials to Prime.

SmartStop argues handwritten notes produced by Prime in discovery discredit Prime's position. Those handwritten notes reference questions about business information such as driving revenue, pricing model strategy, occupancy levels, vacate rates, marketing, predictive modeling and forecasting tools, and attrition monitoring).

		In light of the handwritten notes, which Prime produced as notes from an interview with Mr. Hernandez, the Court cannot conclude that Prime has a reasonable possibility of prevailing on SmartStop's trade secret cause of action based on the argument that Prime has never received or solicited any trade secret information from Mr. Hernandez. Thus, the Motion for Undertaking is DENIED. <i>Moving party to give notice.</i>
105	Simmons vs. Brower Law Group, APC, 26-01548869	Defendant Brower Law Group, APC ("Defendant") filed four discovery motions wherein Defendant moves to Compel Plaintiff Caroline Simmons to provide further responses to the following discovery: (1) Requests for Production, Set One plus \$2,700 in sanctions, (2) Requests for Admission, Set One plus \$2,670 in sanctions, (3) Form Interrogatories, Set One plus \$2,430 in sanctions, and (4) Special Interrogatories Set One plus \$2,970 in sanctions. Plaintiff/Cross-Defendant Caroline Simmons ("Plaintiff") opposes the motion. The Motions are DENIED as untimely. Motions to compel further responses to interrogatories must be noticed "within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the demanding party and the responding party have agreed in writing, the demanding party waives any right to compel a further response to the demand." (Code Civ. Proc., § 2030.300, subd. (c).) However, the "service of unverified responses and objections" does not "activate[]" the 45-day deadline. (<i>Golf & Tennis Pro Shop, Inc. v. Superior Court</i> (2022) 84 Cal.App.5th 127, 136 [holding that 45-day time period to file a motion to compel further responses to interrogatories does not begin to run upon service of combination of unverified factual responses and objections, where the motion challenges only the objections].) "[D]iscovery deadlines are mandatory and we have treated them as jurisdictional." (<i>Weinstein v. Blumberg</i> (2018) 25 Cal.App.5th 316, 322 [citing <i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, 1410].) "Where a party does

		not obtain trial court relief from the statutory deadline, 'failure to move for further answers within the statutory time forecloses further relief.'" (<i>Id.</i> [citing <i>O'Brien v. Superior Court</i> (1965) 233 Cal.App.2d 388, 391].) Here, the Form Interrogatories and Requests for Admission at issue were served on 08/14/2025. For these discovery sets, Plaintiff provided verified responses that contained both facts and objections on 09/12/2025. Thus, the last day for Defendant to move to compel further was Monday, 10/27/2025 (45 days after 09/12/2025). These motions were filed and served on 03/04/2026. The Special Interrogatories and Requests for Production at issue were served on 09/19/2025. For these discovery sets, Plaintiff provided verified responses that contained both facts and objections on 10/21/2025. Thus, the last day for Defendant to move to compel further was Friday, 12/05/2025 (45 days after 10/21/2026). These motions were filed and served on 03/04/2026. This case is different than <i>Golf & Tennis Pro Shop, Inc. v. Superior Court</i> (2022) 84 Cal.App.5th 127 because Plaintiff provided verified factual responses and objections. Accordingly, the deadline was activated when the discovery responses were served on 09/12/2025 and 10/21/2025. The parties did not agree in writing to extend the deadlines to file the motions to compel further. Given the above, the Motions are DENIED. The Case Management Conference is continued to 10/8/2026 at 1:30 p.m. <i>Plaintiff to give notice.</i>
106	Loera vs. United Parcel Services Inc, 24-01420618	Defendant Maurice Maalouli moves to compel Plaintiff Natalie Victoria Loera to serve further responses to Special Interrogatories, Set Three, Nos. 105 and 106 and Request for Production, Set Three No., 80 and for monetary sanctions. This is a personal injury action arising out of a motor vehicle accident. The Special Interrogatories at issue are as follows:

Special Interrogatory No. 105: State whether YOU have served as a caregiver for any family member at any time from the date of the INCIDENT to the present, and if so, identify the family member, describe the nature and extent of YOUR caregiving responsibilities, and state the approximate dates during which YOU provided such care.

Special Interrogatory No. 106:

Identify all sources of stress, anxiety, depression, or emotional distress YOU have experienced from the date of the INCIDENT to the present that YOU contend are unrelated to the INCIDENT, including but not limited to financial difficulties, employment or career concerns, family obligations, caregiving responsibilities, relationship difficulties, or involvement in legal proceedings other than this action.

While the motion was pending, Plaintiff provided an amended response to No. 105. While Defendant contends that sanctions should still be imposed on Plaintiff, Defendant does not contend there are any deficiencies with the amended response. Accordingly, the motion is MOOT as to No. 105, but not as to sanctions.

As to No. 106, Plaintiff objected and did not provide a substantive response. Plaintiff contends the interrogatory is vague, overbroad and seeks disclosure of unrelated mental health and personal history, thus improperly invading Plaintiff's constitutional right to privacy. The Court agrees. The request is for details concerning all sources of stress unrelated to the incident. The interrogatory as phrased is so vague and overbroad as to be impossible to fully answer.

Accordingly, the motion is DENIED as moot as to No. 105, DENIED as to No. 106, and Plaintiff's request for sanctions is DENIED. Defendant's request for sanctions in connection with the motion so to compel further responses to special interrogatories is also DENIED.

Defendant also moves to compel a further response to Request for Production No. 80, which reads as follows:

Request for Production No. 80

		All DOCUMENTS reflecting or RELATED TO any caregiving services, assistance, or support YOU provided to any family member at any time from the date of the INCIDENT to the present, including but not limited to any schedule, log, calendar, communication, or record reflecting the nature, frequency, or duration of such caregiving responsibilities, to the extent not previously produced. Plaintiff responded to this request with objections that the request is overbroad, oppressive, unduly burdensome, and vague and ambiguous. Plaintiff then stated “As discovery is ongoing, Plaintiff reserves the right to supplement or amend this response at a later date.” Defendant contends there is good cause for this request because “the caregiving documents bear directly on the nature and extent of Plaintiff’s claimed physical injuries, her functional capacity, mitigation, and damages, all of which Plaintiff has placed at issue.” (Sep Stmt at 9:28-10:3.) The request is overbroad. Defendant’s stated reason for the discovery is to determine the nature and extent of Plaintiff’s claimed physical injuries. However, the request seeks all documents related to any caregiving services, assistance, or support, and not just physical activities. This overbreadth also creates ambiguity as to what would be considered within the scope of the request. Accordingly, the motion is DENIED as to Request for Production No. 80. Sanctions in the reduced amount of \$575.80 are issued against Defendant Maurice Maalouli. (CCP §2031.310(h).) The amount represents two hours of attorney time at \$250 per hour, plus \$75.80 in costs associated with opposing the motion. Sanctions are due and payable to Plaintiff’s counsel within 30 days of this order. <i>Plaintiff to give notice.</i>
107	Ionita Ariron vs. Yorba Linda Villages Condominium Association,	Defendant Action Property Management, Inc. (“Defendant”) pursuant to Code of Civil Procedure section 579 for an order granting Defendant Action Property Management, Inc. a several judgment.

23-01315563	Plaintiffs Dan Ionita-Ariton, an individual, et al. ("Plaintiffs") oppose the motion. Plaintiff's request for judicial notice of the First Amended Complaint is GRANTED. Code of Civil Procedure section 579 states: "In an action against several defendants, the Court may, in its discretion, render judgment against one or more of them, leaving the action to proceed against the others, whenever a several judgment is proper." (Code Civ. Proc., § 579.) "Under this section the discretion vested is a judicial one, to be exercised by the court, and not the clerk." (<i>Lynch v. Bencini</i> (1941) 17 Cal.2d 521, 530.) "Despite the language of Code of Civil Procedure section 579 (judgment may be entered 'against' one or more defendants), the section has been consistently construed as authorizing entry of judgment 'in favor' of one or more defendants." (<i>Oakland Raiders v. National Football League</i> (2001) 93 Cal.App.4th 572, 577, as modified on denial of reh'g (Nov. 15, 2001).) "[T]here is ample authority for the proposition that the trial court, in its discretion, may enter judgment in favor of one or more defendants when all issues between those defendants and the plaintiff have been adjudicated, even though the action remains pending against those defendants who have not obtained adjudication of all issues." (<i>Oakland Raiders v. National Football League</i> (2001) 93 Cal.App.4th 572, 578, as modified on denial of reh'g (Nov. 15, 2001); see also <i>Heritage Marketing & Ins. Services, Inc. v. Chrustawka</i> (2008) 160 Cal.App.4th 754, 764 ["Here, the grant of summary adjudication resolved all issues alleged in the complaint between plaintiffs and defendants Price and Matonic. Therefore, the court had the discretion to render judgment in their favor."].) "It is irrelevant whether . . . there were potential claims not included in the complaint." (<i>Heritage Marketing & Ins. Services, Inc. v. Chrustawka</i> (2008) 160 Cal.App.4th 754, 764.) "The pleadings frame the issues on a motion for summary adjudication and a party cannot successfully resist such a motion based on allegations that are not contained in the complaint." (<i>Ibid.</i>)
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		For example, in <i>Oakland Raiders v. National Football League</i> (2001) 93 Cal.App.4th 572, the court ruled as such after all issues between the plaintiff and moving defendants were “resolved by way of summary adjudication orders.” (<i>Ibid.</i>) The court held the same in <i>Heritage Marketing & Ins. Services, Inc. v. Chrustawka</i> (2008) 160 Cal.App.4th 754. Such is the case here. Defendant successfully moved for summary judgment as to all issues between Plaintiff and Defendant. (ROAs 408 and 420.) As such, there are no remaining issues to be adjudicated between Plaintiff and Defendant. There are also no other pleadings in this case and therefore no other causes of action alleged against Defendant. In its discretion, the Court GRANTS the motion to enter judgment in favor of Defendant Action Property Management, Inc. <i>Defendant to give notice.</i>
108	Arismendi vs. El Torito Restaurant, 25-01504805	Plaintiff Jacqueline Arismendi moves to compel defendant FM Restaurants El Torito Opco, LLC (sued as El Torito Restaurant) to produce documents responsive to plaintiff's Requests for Production of Documents, Set One and for monetary sanctions against defendant in the amount of \$1,200. Defendant has filed a Notice of Non-Opposition which states that the responsive documents have now been produced. Defense counsel's declaration confirms the same. Thus, the Motion to Compel is DENIED as MOOT. However, Plaintiff's request for monetary sanctions against defendant in the amount of \$1,200 is GRANTED, as the Court finds defendant's failure to provide the responsive documents for over five months, despite repeated extensions, necessitated the filing of the instant motion and was without substantial justification. (Code Civ. Proc., § 2031.310(h); Cal. Rules of Court, rule 3.1348(a).) Sanctions to be paid within 30 days. <i>Moving party to give notice.</i>

109	Home Mortgage Alliance Corporation (HMAC) vs. Turturro, 24-01402022	Defendants, Michael Turturro (“Turturro”); OCMBC, Inc. (“OCMBC”); and Jet Alliance (collectively, “Defendants”), move for an order bifurcating the liability and punitive damages phases of the trial of this action and excluding evidence of all Defendants’ financial condition during the liability phase, pursuant to Civil Code section 3295(d). Plaintiff, Home Mortgage Alliance Corporation (HMAC) dba Jet Mortgage, and Cross-Defendant Alfred Hanna, do not oppose the motion to bifurcate which seeks to bifurcate the liability and punitive damages phases of trial pursuant to Civil Code section 3295(d). Civil Code section 3295(d) provides in relevant part, “The court shall, on application of any defendant, preclude the admission of evidence of that defendant’s profits or financial condition until after the trier of fact returns a verdict for plaintiff awarding actual damages and finds that a defendant is guilty of malice, oppression, or fraud in accordance with Section 3294. Evidence of profit and financial condition shall be admissible only as to the defendant or defendants found to be liable to the plaintiff and to be guilty of malice, oppression, or fraud.” “The purpose behind Civil Code section 3295, which allows bifurcation and preclusion of evidence of a defendant’s wealth and profits during the liability phase of trial, is to minimize prejudice prior to the jury’s determination of a prima facie case of liability for punitive damages. [citation omitted] However, such evidence is not to be excluded on the basis of prejudice when the information is relevant to liability.” (<i>Notrica v. State Compensation Ins. Fund</i> (1999) 70 Cal.App.4th 911, 940. “As an evidentiary restriction, section 3295(d) requires a court, upon application of any defendant, to bifurcate a trial so that the trier of fact is not presented with evidence of the defendant’s wealth and profits until after the issues of liability, compensatory damages, and malice, oppression, or fraud have been resolved against the defendant. Bifurcation minimizes potential prejudice by preventing jurors from learning of a defendant’s “deep pockets” before they determine these threshold issues.” (<i>Torres v. Automobile Club of So. Calif.</i> (1997) 15 Cal.4th 771, 777-78.) Here, Plaintiff’s Second Amended Complaint seeks punitive damages against Defendants. There is no
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		indication that evidence of Defendants' profits or financial condition is relevant to liability. To minimize the potential prejudice to Defendants and pursuant to Civil Code section 3295(d), the Court GRANTS Defendants' motion to bifurcate the liability and punitive damages phases of trial, and to exclude evidence of Defendants' financial condition during the liability phase of trial. <i>Defendants to give notice.</i>
110	Zhejiang Zheshang Asset Management Co., Ltd. vs. Xinwen, 23-01367893	<u>Motion for Summary Judgment</u> Plaintiff ZHEJIANG ZHESHANG ASSET MANAGEMENT CO., LTD. will and hereby does move the court for an order granting Summary Judgment on Plaintiff's Complaint Seeking Recognition and Enforcement of Foreign Country Money Judgment (Code of Civ. Proc. §§ 1713 et seq.) ("Complaint") on file in this matter. Initially, 81 days' notice is required on a motion for summary judgment. CCP §437c(a). This motion was filed on 3/3/2026. It was served on Defense counsel via email on the same date. Notably, it appears the original hearing date for the motion July 30, 2026; however, that date was crossed out and September 24, 2026 inserted. Defendants argue they had no notice of the new hearing date. However, it appears that Defendants clearly had notice of the September 24, 2026 hearing date as they signed a stipulation to continue the September 8, 2026 trial to obtain a ruling on this dispositive motion. (Declaration of Lin ¶¶7-10, Ex. A.) The stipulation was signed on March 23, 2026. Clearly, Defendants have had more than 81 days notice of this motion. As this evidence was submitted with the reply, Defendants should be prepared to respond with any arguments refuting it at the hearing. Where, as here, plaintiff seeks summary judgment, the burden is to produce admissible evidence on each element of a "cause of action" entitling plaintiff to judgment. [CCP § 437c(p)(1).] Once the plaintiff has met that burden, the defendant has the burden to set forth specific facts showing that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. (Id.) Here, the First Amended Complaint has one cause of action for Recognition and Enforcement of Foreign-Country Money Judgment.

Notably, pursuant to CCP §1715(c), “A party seeking recognition of a foreign-country judgment has the burden of establishing that the foreign-country judgment is entitled to recognition under this chapter.” The party resisting recognition has the burden of establishing a specific ground for not recognizing the judgment. [CCP §§ 1715(c), 1716(e); *AO Alfa-Bank v Yakovlev* (2018) 21 Cal.App.5th 189, 199; *Hyundai Sec. Co., Ltd. v Lee* (2015) 232 Cal.App.4th 1379, 1386.]

To that end, the party must establish that “Under the law of the foreign country where rendered, [the judgment] is final, conclusive, and enforceable.” [CCP §1715(a)(2).]

In this instance, in support of its motion, Plaintiff submits two declarations, and a compendium of exhibits.

Plaintiff submits the Declaration of Hans Lin, who is the attorney of record for Zhejiang Zheshang Asset Management Co., Ltd. His declaration is submitted to support Plaintiff’s damages calculations, including the calculation of principal, accrued interest, compound interest, and currency conversion. (Decl. of Lin¶2.)

Additionally, Plaintiff submits the Declaration of Jianghuai Bai, a representative of the Zhejiang Zheshang Asset Management Co., Ltd. (Emphasis added, Decl. Bai¶1.) He states, “I have personal knowledge of the matters stated herein, and if called as a witness, would and could testify competently thereto.” (Id.) He sets forth the underlying loan agreement, its breach, and the dates of the underlying PRC case. Without directing the Court to any specific documents he declares:

“20. After crediting amounts recovered through foreclosure and auction proceedings, the remaining debt transferred to Plaintiff consisted of a principal balance of RMB 6,011,695.21 and accrued interest of RMB 20,799,465.87 as of March 20, 2020.

“21. The Higher People’s Court of Fujian Province subsequently issued an order confirming ZHEJIANG ZHESHANG ASSET MANAGEMENT CO., LTD. as the lawful judgment creditor entitled to enforce the judgment.”

Thereafter, he provides legal conclusions such as, “The proceedings before the Higher People’s Court of Fujian Province were conducted under a judicial system that provides impartial tribunals and procedures compatible with the requirements of due process of law.” (Decl. of Bai¶23).

Finally, he attempts to authenticate the exhibits attached to the compendium of exhibits by declaring, for example, “A true and correct copy of Foreign Judgment (2015) Rong Min Chu Zi No. 1207 is attached hereto as Exhibit C.” (Id.¶32.)

As to the Compendium of Exhibits, Plaintiff submits, among other documents, as Ex. C, the Intermediate People’s Court of Fuzhou Municipality, Fujian Province 2015 Civil Judgment and its translation. And, Ex. E, The People’s Republic of China Higher People’s Court of Fujian Province Civil Judgment and its translation (appeal which apparently reduced the judgment).

Defendants however argue that Plaintiff has not carried its threshold burden under Code of Civil Procedure (“CCP”) §1715(c), to establish, with admissible evidence, that the PRC judgment is final, conclusive, and enforceable, or that Plaintiff is the real party in interest as a valid assignee. *Manco Contracting Co. (W.L.L.) v. Bezdikian* (2008) 45 Cal.4th 192, 200–203.

Indeed, pursuant to CCP §437c(d), “Supporting and opposing affidavits or declarations shall be made by a person on personal knowledge, shall set forth admissible evidence, and shall show affirmatively that the affiant is competent to testify to the matters stated in the affidavits or declarations. An objection based on the failure to comply with the requirements of this subdivision, if not made at the hearing, shall be deemed waived.”

Attorney Lin’s declaration fails to establish the conclusive amount of the judgment as he fails to direct the Court to portions of the Judgment(s) establishing the damages awarded or the amount which has already been satisfied. Even if he did, he fails to authenticate any of those documents.

As to the Declaration of Bai, he fails to establish as a “representative” of an “assignee” to the judgment how he has personal knowledge of any of the documents attached to the Compendium of Exhibits. How were those documents obtained? Did he review them? In what capacity?

As such, it does not appear that Plaintiff has sustained its burden under CCP §437(p)(1) or CCP§1715.

Even assuming, arguendo, that Plaintiff sustained its burden, and the burden shifts to Defendants to create a triable issue of material fact (CCP §437(p)(1) and of establishing a specific ground for not recognizing the judgment (CCP §§ 1715(c), 1716(e), Defendants have done so.

At the outset, the Court notes that this is a Motion for Summary Judgment where just one triable issue of material fact defeats the motion. Pointedly, Defendants dispute practically all of Plaintiff’s 23 facts in their separate statement (ROA 148), in addition to setting forth three additional facts of their own.

Generally, a California court must recognize a foreign-country judgment, unless one or more of the statutory grounds for not recognizing the judgment apply. CCP § 1716(a). These grounds are as follows:

- The judgment was rendered under a judicial system that does not provide for impartial tribunals or procedures compatible with due process of law. CCP § 1716(b)(1).
- The foreign court did not have personal jurisdiction over the defendant. CCP § 1716(b)(2).
- The foreign court did not have jurisdiction over the subject matter. CCP § 1716(b)(3).
- The defendant in the foreign court proceeding did not receive notice of the proceeding in sufficient time to defend. CCP § 1716(c)(1)(A).
- The judgment was obtained by fraud that deprived the losing party of an adequate opportunity to present a case. CCP § 1716(c)(1)(B).
- The judgment or claim for relief on which the judgment is based is repugnant to the public policy of this state or of the United States. CCP § 1716(c)(1)(C).
- The foreign court proceeding was contrary to the parties' agreement under which their dispute was to be determined

otherwise than by proceedings in that court. CCP § 1716(c)(1)(D).

- In the case of jurisdiction based only on personal service, the foreign court was a seriously inconvenient forum for the trial of the action. CCP § 1716(c)(1)(E).
- The judgment was rendered in circumstances raising substantial doubt about the foreign court's integrity with respect to the judgment. CCP § 1716(c)(1)(F).
- The foreign court proceeding was incompatible with the requirements of due process of law. CCP § 1716(c)(1)(G).

Even if one or more of these grounds are shown, a California court may still recognize a foreign-country judgment if the party seeking recognition demonstrates good reason to recognize the judgment that outweighs the ground for not recognizing the judgment. [CCP § 1716(c)(2).]

Defendants herein submitted Answers which plead 11 affirmative defenses each. [See ROAS 11, 12.] In the Opposition, they argue:

- PRC Court Lacked Personal Jurisdiction Over Both Defendants
- Neither Defendant Received Notice Sufficient to Defend, Including of the Unnoticed Appellate Modification
- Fraud deprived them of an adequate opportunity to be heard.
- Judgment recognition is incompatible with due process.
- Judgment recognition is against public policy

Each of these grounds are essentially based on the same facts.

As to personal jurisdiction, a California court may not recognize a foreign-country judgment when the foreign court did not have personal jurisdiction over the defendant. CCP § 1716(b)(2). A foreign court lacks personal jurisdiction over a defendant if that court did not have a basis for exercising personal jurisdiction that would be sufficient according to the standards governing personal jurisdiction in California. CCP § 1717(a)(1). A foreign court also lacks personal jurisdiction if it did not have jurisdiction under its own law. CCP § 1717(a)(2). A California court may not refuse recognition of a foreign-country money

judgment for lack of personal jurisdiction under CCP § 1717(a)(2) if:

- (1) The defendant was served with process personally in the foreign country;
- (2) The defendant voluntarily appeared in the proceeding;
- (3) The defendant agreed to submit to the foreign court's jurisdiction before the proceeding was commenced;
- (4) The defendant was domiciled in the foreign country when the proceeding was instituted;
- (5) The defendant had a business office in that country and the proceeding involved a claim for relief arising out of business done by the defendant through that office; or
- (6) The defendant operated a motor vehicle or airplane in that country and the proceeding involved a claim for relief arising out of that operation. CCP § 1717(b).

This list of bases for personal jurisdiction is not exclusive. CCP § 1717(c).

Here, Plaintiff argues that Defendants Xinwen Zhuang and Minyan Zheng were properly served by publication in China. [UMF No. 7, See Exhibit C; Exhibit D; Bai Decl. ¶ 7.] Also, Plaintiff argues that Zheng appeared through counsel.

ZHENG

As to publication, Zheng declares:

“2. I became a lawful permanent resident of the United States in approximately September 2008 and was naturalized as a United States citizen in May 2022.

“6. I did not receive any summons, complaint, notice to respond, hearing notice, or other litigation documents at my former address in China.

“10. I never saw, read, or otherwise became aware of the purported service by publication in the Chinese newspaper named “People’s Court Daily”, whether before, during, or after the PRC proceeding.”

Both parties seemingly agree that publication is a valid means of service in both California and PRC.

However, in California the first requirement to obtaining a right to service by publication is a showing that reasonable attempts have been made to serve the defendant in some other authorized manner. [CCP § 415.50(a)]

No showing here has been established.

As to the argument that Ms. Zheng appeared through counsel, that is uncertain. If she appeared through counsel on December 16, 2015 as Plaintiff's Ex. G suggests, it does not follow that the Court would authorize service by publication on January 6, 2016 as Plaintiff's Ex. D purports.

Furthermore, she declares:

"11. I never retained any attorney in China, or anywhere else, to represent me in the PRC proceeding, and I never executed any power of attorney or otherwise authorized any attorney or agent to accept service, appear, or represent my interests on my behalf in that proceeding.

"12. The document produced in this case that purports to be a Power of Attorney authorizing legal representation in the PRC proceeding is not genuine as to me. I never signed it, never authorized anyone to sign it on my behalf, and never gave anyone the authority it purports to grant. I was unaware that any person had purported to appear on my behalf in the PRC proceeding until this California action commenced.

"13. I was living in the United States on or around December 16, 2015, the date shown on that purported Power of Attorney. I did not travel to China to execute it, and I did not sign it, or any other document purporting to authorize legal representation in the PRC proceeding, at that time or at any other time."

As such, there appear to be triable issues of material fact as to whether PRC obtained jurisdiction over Zheng, whether she had notice in time to defend, and whether the judgment was procured by fraud.

ZHUANG

As to service by publication he declares:

“5. I am a United States citizen. At all times relevant to this action, I have been domiciled in the United States.

“10. I never saw, read, or otherwise became aware of the purported service by publication in the Chinese newspaper named “People’s Court Daily”, whether before, during, or after the PRC proceeding, notwithstanding that my U.S. passport was identified on the purported Letter of Personal Guarantee.

“11. I have never been served with any PRC litigation documents while in the United States, whether by personal service, substituted service, service by mail, service by courier, service by email, or any other method directed to me in the United States.

“12. To my knowledge, no attempt was ever made to serve me, and neither Plaintiff, the PRC court, nor any process server ever contacted me, at my residence in the United States, regarding the PRC proceeding at any time before entry of the underlying judgment.

“20. Had I received timely and adequate notice of the PRC proceeding, I would have appeared and defended myself against the claims asserted against me.”

This sworn testimony creates a triable issue of material fact as to whether any attempt was made to first serve Mr. Zhuang by other means besides publication as required under CA law; and thus, whether the PRC had jurisdiction over Mr. Zhuang. It presents triable issues of fact as to whether jurisdiction over Mr. Zhuang was obtained and whether he had notice of the lawsuit in time to defend.

“Section 437c of the Code of Civil Procedure requires that an affidavit in opposition to a motion for summary judgment shall set forth facts showing that the party has a good and substantial defense to plaintiff’s action. By defendant’s affidavits he asserts that he has a good defense to plaintiff’s cause of action by reason of the fact that *he was never personally served in the Illinois action,*

he did not appear and did not authorize anyone to appear on his behalf in the proceedings.

“If defendant is able to establish that the Illinois judgment is void upon the ground that the court rendering it did not have jurisdiction, it will constitute a good defense to plaintiff’s action, and that issue having been raised, defendant should not be summarily deprived of a full hearing at a trial of the action.”

[Emphasis added, *Strauss v. Strauss* (1949) 90 Cal.App.2d 757, 759.]

For these reasons, the Motion for Summary Judgment is DENIED.

Defendants to give notice.

Motion to Deny Recognition of Foreign Country Money Judgment

Defendants Xinwen Zhuang and Minyan Zheng (“Moving Defendants”) will and hereby do move for an order denying recognition of the foreign-country money judgment that Plaintiff seeks to recognize and enforce in this action.

In an action seeking recognition of a foreign country judgment, the party seeking recognition has the burden to establish the foreign country judgment meets the requirements of the UFCMJRA. [Civ. Proc. Code, § 1715, subd. (c)]; [see also, *Naoko Ohno v. Yuko Yasuma*, 723 F.3d 984 (9th Cir. 2013)]

Pursuant to Ca Civ. Proc. Code § 1718(a), “the issue of recognition shall be raised by filing an action seeking recognition of the foreign-country judgment.”

Notably, the U.S. Supreme Court has held that foreign country judgments are prima facie evidence of the plaintiff’s claim. [See *Hilton v. Guyot*, 159 U.S. 113, 168 (1895).]

Thereafter, a party resisting recognition of a foreign country monetary judgment has the burden of establishing that (a) ground for nonrecognition set forth in section 1716 (b) [mandatory due process and jurisdictional issues] (c) [discretionary procedural due process jurisdictional issues]

and (d) [conflict with other judgments] exists. [Civ. Proc. Code, § 1716, subd. (e)]; [see also, *Naoko Ohno v. Yuko Yasuma*, 723 F.3d 984 (9th Cir. 2013)] Resistance to recognition of a foreign judgment “may be raised by counterclaim, cross-claim, or affirmative defense.” [Civ. Proc. Code, § 1718, subd. (b)]

In this instance, Plaintiff ZHEJIANG ZHESHANG ASSET MANAGEMENT CO., LTD. filed Complaint on 12/7/2023 for Recognition and Enforcement of Foreign Country Money Judgment. On 1/26/2024, Plaintiff filed a First Amended Complaint. Defendants XINWEN ZHUANG and MINYAN ZHENG filed separate Answers on 2/26/2024.

On 4/7/2026, Defendants filed this “NOTICE OF MOTION AND MOTION TO DENY RECOGNITION OF FOREIGN COUNTRY MONEY JUDGMENT”. In support of their motion, Defendants submit exhibits and declarations. Issues raised in the motion involve: whether a United States address was actually known to the PRC creditor or the PRC court, whether Defendants can collaterally attack Zheng’s court-filed Power of Attorney, and whether the PRC court’s service procedures complied with Chinese.

A month earlier, on 3/3/2026 Plaintiff filed a NOTICE OF MOTION AND MOTION FOR SUMMARY JUDGMENT, which is set for 9/24/2026.

The Court finds pursuant to *Hyundai Securities Co., Ltd. v. Lee* (2013) 215 Cal.App.4th 682, 686, the issues raised in the Defendants’ motion should be addressed via Motion for Summary Judgment. [“We hold that a proceeding under California’s “Uniform Foreign–Country Money Judgment Recognition Act” (Code Civ. Proc., §§ 1713–1724 (the Act)), is an action and subject to the requirements applicable to all actions. Because the trial court in this case recognized the foreign-country money judgment upon a petition rather than upon a duly noticed motion for summary judgment, judgment on the pleadings, or trial, we reverse the judgment.” *Hyundai Securities Co., Ltd. v. Lee* (2013) 215 Cal.App.4th 682, 686.]

Therefore, the Motion is DENIED on procedural grounds only.

Plaintiff to give notice.

